

The Punjab Labour Welfare Fund (Amendment) Act, 2005

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The Punjab Labour Welfare Fund (Amendment) Act, 2005

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The Punjab Labour Welfare Fund (Amendment) Act, 2005

Rule THE-PUNJAB-LABOUR-WELFARE-FUND-AMENDMENT-ACT-2005 of 2005

Published on 28 May 2009

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The Punjab Labour Welfare Fund (Amendment) Act, 2005

Published vide Notification No. G.S.R. 364(E), dated 28th May, 2009

Ministry of Home Affairs

G.S.R. 364(E). - In exercise of the powers conferred by section 87 of the Punjab Reorganisation Act, 1966 (31 of 1966), the Central Government hereby extends to the Union territory of Chandigarh, the Punjab Labour Welfare Fund (Amendment) Act 2005 (Punjab Act No. 18 of 2006), as in force in the State of Punjab on the date of publication of this notification, subject to the following modifications, namely:-

Modifications

1.

In section 2 of the Punjab Labour Welfare Fund (Amendment) Act, 2005, after the words and figures "the Punjab Labour Welfare Fund Act, 1965", the words, "as in force in the Union territory of Chandigarh" shall be inserted.

The Annexure

The Punjab Labour Welfare Fund (Amendment) Act, 2005 as Extended to the Union Territory of Chandigarh (Punjab Act No. 18 of 2006).

The Punjab Labour Welfare Fund (Amendment) Act, 2005

(Punjab Act No. 18 of 2006)

An Act further to amend the Punjab Labour Welfare Fund Act, 1965.

Be it enacted by the Legislature of the State of Punjab in the Fifty-sixth Year of the Republic of India as follows:-

1.

(1)

This Act may be called the Punjab Labour Welfare Fund (Amendment) Act, 2005.

(2)

It shall come into force at once.

2.

In the Punjab Labour Welfare Fund Act, 1965 (hereinafter referred to as the principal Act), in section 3, in sub-section (2)

:-

(i)

in clause (e), the word "and" occurring at the end, shall be omitted; and

(ii)

in clause (f), for sign "." occurring at the end, the sign and word "; and" shall be substituted and thereafter, the following clause shall be inserted, namely:-

"(g) contribution of employers and employees."

3.

In the principal Act, after section 9, the following section shall be inserted namely:-

"9A. (1) Every employee shall contribute one rupee per month to the Fund and every employer shall, in respect of each such employee, contribute two rupees per month to the Fund.

Explanation. - For the purpose of sub-section (1), "employee" shall mean an employee whose name finds mention in the register of an establishment on the last working day of the month.

(2)

Every employer shall pay to the Fund both, his contribution and the contribution of the employee before the fifteenth day of October, for the period commencing from the 1st day of April to the 30th day of September, and before the fifteenth day of April, for the period commencing from the 1st day of October to the 31st day of March every year, by crossed cheque or demand draft in favour of the Welfare Commissioner.

(3)

The employer shall be entitled to recover from the employee, the employee's contribution by deduction from his wages and not otherwise;

Provided that no such deduction shall be made in excess of the amount of the contribution, payable by such employee;

Provided further that if through inadvertence or on account of some other reason, no such deduction has been made from the wages of an employee for any month, such deduction shall be made from the wages of such employee in any subsequent month after intimation in writing to the employee and the Inspector;

Provided further that it shall be no excuse for the employer for non-payment of contribution to the Fund that he had not deducted the contribution of the employee from his wages."

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